CHAPTER 3

Ethical and Legal Issues in Group Counseling

Introduction
Ethical Issues in Group Membership
Confidentiality
The Role of the Leader's Values in the Group
The Ethical Imperative of Addressing Diversity in Group Counseling
Social Justice Approach to Group Counseling
Special Issues Pertaining to Sexual Orientation
Ethical Concerns in Using Group Techniques
Competence and Training of Group Counselors
Guidelines for Ethical and Legal Practice
Points to Remember
Exercises



CHAPTER LEARNING OBJECTIVES

1. Identify the major ethical issues pertaining to group membership
2. Define and explore the role of informed consent in a group
3. Identify and discuss some psychological risks of group participation
4. Define and explore the role of confidentiality in a group
5. Explain the role of a leader's values in group work
6. Discuss ways to ethically deal with a conflict of values
7. Explore ethical issues addressing diversity in groups
8. Explain the social justice approach to group work
9. Identify ethical issues pertaining to sexual orientation in groups
10. Describe some ethical issues in using group techniques
11. Identify key aspects of competence and training in group work
12. Identify ethical and culturally relevant strategies for designing and facilitating groups (CACREP, 2016, Standard G)
13. Describe some ways students can get direct experience by participating as members in a small group activity (CACREP, 2016, Standard H)
14. Discuss key ethical issues in training group counselors
15. Explain legal liability and malpractice
16. List legal safeguards to practicing group work

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You have been coleading a group for college students for 10 weeks. During one of the sessions you realize that one of the group members works with a friend of yours. Your friend is getting married, and you learn that both you and the group member have been invited to attend the wedding. What are the key issues you need to be aware of in this situation? In reflecting on what you might do, consider these questions:

- Do you tell the client that you are friends with the same person and that you too are invited to the wedding?
- Do you say anything to your friend who has invited you and your client? If so, what do you say? If not, what is your reasoning?
- If you go to the wedding, would you consider bringing your partner or a guest?
- Would you be inclined to talk to the group member at the wedding?
- Would you drink alcohol at the reception?
- How would you resolve any ethical conflicts you may have in this scenario?

Introduction

Throughout this chapter we refer to ethical, legal, clinical, and cultural issues. **Ethical issues** pertain to the standards that govern the conduct of professional members. These standards can be found in the ethics codes of the various professional organizations. **Legal issues** define the minimum standards society will tolerate, which are enforced by the rule of law at the local, state, or federal level. For example, there is a legal obligation for mental health professionals to report suspected child abuse. All of the codes of ethics contain a clause stating that practitioners must act in accordance with relevant federal and state statutes and government regulations. It is essential that practitioners be able to identify legal problems as they arise in their work because many of the situations they encounter that involve ethical and professional judgment will also have legal implications (Corey, Corey, Corey, & Callanan, 2015). **Clinical issues** involve using your professional judgment to act in accordance with ethical and legal mandates. For example, when reporting child abuse that involves your client, following the law is not enough. It is essential that you develop the clinical skills necessary to help the client as well. Cultural dynamics often come into play when addressing clinical issues. **Cultural issues** are factors such as a person's ethnic background, gender, sexual orientation, religious affiliation, values, or other differences that affect the way we understand and intervene with clients' problems. Cultural issues must be managed in clinically relevant ways. For example, bartering for services, gift giving, and interacting with group members in a nonprofessional setting may be seen as unethical in one culture but not in another. The ethical guidelines of our profession cannot take into account all cultural differences. You are likely to encounter clinical and cultural issues that raise ethical and legal dilemmas throughout your professional career.

Our aim in this chapter is to highlight the ethical issues of central significance to group workers. Major ethical issues in group counseling that have been consistently identified in the literature since the 1980s include leader values, screening and orientation of group members, informed consent, voluntary and involuntary

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group membership, group leader preparation and behaviors, confidentiality, multiple relationships in group work, diversity and multiculturalism, record keeping, and billing (Rapin, 2010, 2014).

Groups have unique therapeutic power that can be used to empower clients in their life-changing journeys, but groups also have the potential to do harm to participants. As a group counselor, your skill, style, personal characteristics, and competence in group work are crucial dimensions that contribute to the quality of the outcomes of a group you might lead. Groups designed around ethically and legally sound principles have a far greater chance of being effective than groups designed without such thought and facilitated inadequately.

For those who are preparing to become group leaders, a thorough grounding in ethics is as essential as a solid base of psychological knowledge and skills. Professionals and student-trainees must know the ethical standards of their professional specialization. They must learn to make ethical decisions, a process that can be taught both in group courses and in supervised practicum experiences. Learning to think critically about complex ethical dilemmas produces clinicians who are more clinically competent and culturally sensitive. Teaching students to think ethically, legally, clinically, and culturally is a form of social justice. This inclusive approach to ethical and legal decision making can raise the bar on our profession's effectiveness as we strive for aspirational practice. Being an ethical practitioner involves far more than a basic knowledge of the legal standards of our profession. Practicing ethically demands a high level of consciousness on our part, both personally and professionally.

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In studying ethics, students have an opportunity to apply critical thinking to what may appear to be straightforward rules and to broaden the way the profession looks at ethical issues, especially from a cultural point of view. Although we have noticed a trend toward teaching ethics from a rule-based perspective emphasizing right and wrong actions, we believe it is important to encourage students to wrestle with the complexities and the gray areas they will confront in their work. For example, it is overly simplistic to say that multiple relationships are unethical and should be avoided. Instructors find themselves in multiple roles with students as teachers and advisers; counselors working in rural communities may find themselves customers of or members of the same church as their clients. The real world is complex and ever-changing, and counselors will wrestle with many issues that cannot be resolved by following a simple rule. We are not suggesting that you ignore the basic rules and guidelines of the profession; these are a good place to begin your inquiry. But to practice ethically and improve you clinical and cultural effectiveness, you need to develop the skills of looking deeper into ethical issues.

As a group leader, you will need to learn how to apply the established ethics codes of your profession to a range of practical problems. The "Best Practice Guidelines" (ASGW, 2008) contains useful ideas for group workers in planning, conducting, and evaluating their groups, but such ethics codes and practice guidelines typically provide only broad guidelines for responsible practice. Personal integrity is a key asset in becoming an ethical practitioner. Examining your own

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ethical conduct and intentions in your everyday life as well as in your professional life is a good place to start. Being aware of your personal biases and your decision-making style in challenging situations will help you guard against unethical practices in your group work.

Ethical decision making is a continuous process. Part of the decision-making process involves learning about the available resources you can draw on when you are struggling with an ethical question. Although you are ultimately responsible for making ethical decisions, you do not have to do so in a vacuum. Consult with colleagues, get continued supervision and training during the early stages of your development as a leader, keep up with recent trends, and attend relevant conventions and workshops.

Beginning group leaders are prone to burdening themselves with the expectation that they should always know the "right" thing to do in every possible situation. There is room for several appropriate responses in most situations. We hope you will gradually refine your position on the issues we raise in this chapter, a process that demands a willingness to remain open and to adopt a questioning yet responsible attitude. We do not think these topics can be resolved once and for all; these complex issues take on new dimensions as you gain experience as a group leader.

LO1

Ethical Issues in Group Membership

To begin the discussion of ethics as it pertains to group work, we suggest that you take time to reflect on the questions at the beginning of each section to increase your appreciation for what your members might experience. These questions for self-reflection can assist you in thinking about your position on each of the topics explored.

Informed Consent

LO2

Think back to a time when you were a member of a group or beginning a course in which you were required to share personal information and explore interpersonal dynamics in an open manner. What concerns did you have as a member of a group? What questions did you have about confidentiality? What did you want to know in order to feel safe in making personal disclosures to the group members and leaders?

Informed consent is a process of presenting basic information about a group to potential group participants to assist them in deciding whether to enter the group and how to participate in it. It is sound policy to provide a professional disclosure statement to group members that includes information on a variety of topics pertaining to the nature of the group. This information typically includes therapist qualifications, techniques that are often used in the group, and risks and benefits of participating in the group. It is important to convey information in a timely manner about other topics such as alternatives to group treatment; policies regarding appointments, fees, and insurance; and the nature and limitations of confidentiality in a group. This can be done at a level that is best comprehended by those who are being considered for a group. In addition, informed consent

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contains information about a client's right to confidentiality as well as limits of confidentiality.

It is a good idea to explain that informed consent is an ongoing process rather than a one-time event. Although it is an ethical and a legal requirement to secure informed consent at the outset of a member's participation in a group, various aspects of the consent process may need to be revisited at different phases of a group. When informed consent is done effectively, it helps promote individual autonomy, engages members in a collaborative process, and reduces the likelihood of exploitation or harm (Barnett, Wise, Johnson-Greene, & Bucky, 2007; Wheeler & Bertram, 2015).

When individuals have adequate information, they are in a position to determine whether they want to join a particular group. Other relevant information pertaining to this issue can be found in Chapter 5 (see "Guidelines for Announcing a Group and Recruiting Group Members"). A more complete discussion of informed consent can be found in Corey, Corey, Corey, and Callanan (2015).

Involuntary Membership

You have been told that you are required to participate in a group. What are your immediate reactions? What information would you expect to receive?

Ideally, participation in a group is voluntary, but this is not always the case. Especially when group participation is mandatory, much effort needs to be directed toward clearly and fully informing members of the nature and goals of the group, procedures that will be used, the rights of members to decline certain activities, the limitations of confidentiality, and ways active participation in the group may affect their life outside the group. On this topic the American Psychological Association (APA, 2010) has the following guideline: "When psychological services are court ordered or otherwise mandated, psychologists inform the individual of the nature of the anticipated services, including whether the services are court ordered or mandated and any limits of confidentiality, before proceeding" (3.10.c).

Leading groups takes considerable skill and knowledge even when the group is composed of participants who are highly motivated and who have chosen to be in the group. Leading groups composed of involuntary members makes the task even more difficult and creates new dynamics to address in the group process. Informed consent involves leaders' making members aware of both their rights and their responsibilities as group participants. Thus, in mandatory groups or in required groups that emphasize self-disclosure and personal exploration, leaders are advised to take special care to inform members of what is involved in being part of the group. If they attend a group but do not participate, members should be informed that this will be documented in their record or clinical file. Group leaders should strive to help involuntary members understand their choices and the consequences of lack of compliance with the treatment program (Rapin, 2014).

Showing involuntary members how they could personally benefit from a group can increase voluntary participation. Sometimes members are reluctant to become involved because of misinformation or stereotyped views about the nature of therapy. They may not trust the group leaders or the process involved.

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Many of them have reservations about opening themselves up to others, and they are likely to be concerned about how the information they disclose will be used or possibly abused. A major factor of success in leading a group with involuntary participants involves not allowing negative attitudes of some members to contaminate the entire group experience.

Perceptive leaders deal with the reactions of members openly. Although group leaders may not be able to give members the option of dropping out of the group, leaders can provide the support necessary to enable members to fully come to grips with their fears and resistances without turning the group into a mere gripe session. Group members can be given the freedom to decide how to use the session time. Group leaders can reassure members that it is up to them to decide what personal topics they will discuss and what areas they will keep private. In other words, they should be clearly informed that they have the same rights as the members of any group—with the exception of the right not to attend.

It is critical that leaders not start out with the assumption that a mandatory group will automatically be composed of unmotivated clients, for this belief is bound to have a negative effect on group members. Instead, any initial distrust must be treated with respect as this can be the very material for exploration that leads to increased trust. It is possible for people who attend mandated groups to make significant changes in their lives. A group proposal for those mandated to attend a domestic violence group appears in Chapter 11, along with some therapeutic benefits of such a group.

Freedom to Withdraw From a Group

In a group you are leading, one member suddenly and unannounced gets up and walks out. How would you be affected? What would you say or do? In what ways might you react differently if you were a member of the group rather than the leader?

Adequate preparation and screening can reduce the risk of members leaving a group prematurely. Leaders must be clear about their policies pertaining to attendance, commitment to remaining in a group for a predetermined number of sessions, and leaving a particular session if members do not like what is going on in the group. It is a good policy for a leader to begin the initial session with a discussion of the possible risks involved in leaving the group prematurely. Ideally, both the leader and the member work in a cooperative fashion to determine whether a group experience is productive or counterproductive for each individual. Although members have the right to leave a group, it is important that they inform both the group leader and the members before making their final decision.

Group leaders must intervene if other members use undue pressure to force any member to remain in the group. It is important to consider why members may want to leave a group. Many times the behaviors we see members exhibiting in a group are indicative of how they behave in their daily lives. Some people have difficulty handling conflict or dealing with intense emotions, and these members are likely to talk about leaving the group, or may actually leave. Some participants will be physically in the group but emotionally absent from the process. The reasons for the member's behavior should be explored. If you are too quick to allow

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a member to quit, you may miss an excellent opportunity for insight and personal growth on the part of that member.

We are not in favor of forcing members to remain in a group regardless of the circumstances. During the individual screening interview and the orientation session, we take great care to inform prospective members about the nature of the group. In time-limited, closed groups we also stress to participants the importance of a careful commitment to carrying out their responsibilities. We emphasize how important it is for members to verbalize any doubts or concerns they are having about the group rather than keeping these reactions to themselves. Members need to know that the best way to work through interpersonal conflicts or dissatisfactions with a group is often to stay and talk. If members simply stop coming to a group, it is extremely difficult to develop a working level of trust or to establish group cohesion.

Furthermore, if a person leaves without careful consideration and explanation, the consequences could be negative for the members remaining as well as for the departing member. Some members may feel burdened with guilt and may blame themselves for saying or doing "the wrong thing" and contributing to an individual's decision to quit. And the person who leaves may have unexpressed and unresolved feelings that could have been worked through with some discussion. With a commitment to discuss the factors related to leaving, there is an opportunity for everyone concerned to express and explore unfinished business.

Occasionally unforeseen circumstances such as a family emergency may result in a member having to leave a group suddenly, either for a time or permanently. If the member is unable to explain this to the group and does not contact the leader, the leader could take the initiative and contact the person to inquire about his or her absence. Taking such steps is useful not just for the group member who must leave but also to ease the minds of the remaining members who would be wondering why the member is no longer a part of the group.

Psychological Risks for Members

LO3

What particular risks would concern you as a member of a group? As a group leader, what risks might you explore with potential members during a screening interview?

The forces at work in a therapeutic group are powerful. They can be constructive, bringing about positive change, but their unleashing always entails some risk. It is unrealistic to expect that a group will not involve risk, yet it is the ethical responsibility of the group leader to ensure that prospective group members are aware of the potential risks and to take every precaution against them and to consider ways of reducing potential risks.

The American Counseling Association (ACA, 2014) ethical standard specifies: "In a group setting, counselors take reasonable precautions to protect clients from physical, emotional, or psychological trauma" (A.9.b). This includes discussing the impact of potential life changes and helping group members explore their readiness to deal with such changes. A minimal expectation is that group leaders discuss with members the advantages and disadvantages of a given group, that they prepare the members to deal with any problems that might grow out of the group experience, and that they be alert to the fears and reservations members

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might have but are not expressing. Members who come from backgrounds in which conflict was harmful and abusive may find healing by learning new ways to resolve difficulties with others. They also may gain a sense of confidence in their own ability to cope with a wide range of emotions.

Group leaders must have a broad and deep understanding of the forces that operate in groups and how to mobilize those forces in an ethical fashion. Unless leaders exert caution, members not only may miss the benefits of a group but also could be psychologically harmed by it. Ways of reducing these risks include knowing members' limits, respecting their requests, developing an invitational style as opposed to a pushy or dictatorial style, avoiding assaultive verbal confrontations, describing behavior rather than making judgments, and presenting hunches in a tentative way rather than forcing interpretations on members. These risks should be discussed with the participants during the initial session. For example, a leader of a group for women who have been survivors of incest might say, "As you begin to uncover painful memories of your childhood and the abuse that took place, you may feel more depressed and anxious for a time than before you entered this group. It is very important to talk about these feelings in the group, especially if you have thoughts about quitting." Group leaders could also help members explore the concerns they have about transferring what they are learning in the group to their everyday lives.

After an intense group experience, participants may be inclined to make rash decisions that affect not only their own lives but also the lives of members of their families. For example, a woman who has been married for 20 years and who becomes aware of her extreme alienation from her husband may leave the group with a resolve to get a divorce. The group leader could caution her against making decisions too soon after an intense group session. If this woman has changed in the group, she may be able to relate to her husband differently; if she acts too soon, she may not give this behavioral change a chance to happen. It is not the leader's responsibility to stand in the way of members' decisions, but the leader is responsible for cautioning members against acting prematurely without carefully considering potential consequences. It is also a good practice to caution members who have done significant cathartic work to refrain from leaving a session and saying in person everything they may have symbolically said to a significant other in a therapeutic context. The group leader can assist members in determining what they most want to communicate and also in finding ways to express their thoughts and feelings in a manner that shows concern and is most likely to lead to a successful encounter.

Sometimes members imagine concerns of their own about the group experience and are very fearful. For example, they may believe that if they allow themselves to feel their pain they will sink into a deep depression and won't be able to recover. Some are convinced that if they give up their self-control they will not be able to function. Others are frightened of letting people know them because they expect they will be rejected. Such fears should be explored early so members can determine how realistic they are and how they can best deal with these fears in the group. The leader should stress that group members have the right to decide for themselves what to explore and how far to go. Leaders need to be alert to group pressure and block any attempts by members to get others to do something they choose not to do.

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A somewhat different risk involved in group work is the reality that members can misuse the purpose of a group. For example, when I (Cindy) was facilitating an eating disorder group in college, I noticed that the members were learning self-destructive behaviors from each other by sharing tips regarding ways to burn calories and keep weight off. This kind of misuse is not common, but it calls attention to the need for screening group members to determine whether they would be better served by individual counseling rather than working in a group setting.

We expand our treatment of these issues in Chapter 6, providing guidelines to help participants get the maximum benefit from a group experience. For now, let's look briefly at some possible risks of therapeutic groups, a topic that can be addressed with participants as part of informed consent.

1. *Misuse of power* is a significant risk factor. Group leaders can do a great deal toward preventing damaging group experiences. Group leaders need to be aware of both the overt and subtle ways in which they utilize their power. For example, a leader's gender or cultural identity is likely to have an effect on how much power group members ascribe to the leader. Group therapists have legitimate power by virtue of their leadership expertise and specialized knowledge and skills. Ideally, group leaders will use their power to empower the members of their groups by helping them to discover their inner resources and capacities. This power is used to the members' good, and it can be shared. This is what collaborative relationships are about.
2. *Self-disclosure* is sometimes misused by group members. The group norm has sometimes been misunderstood to mean the more disclosure that takes place, the better. But privacy can be violated by indiscriminately sharing one's personal life. Self-disclosure is an essential aspect of any working group, but it is a means to the end of fuller self-understanding and should not be promoted in its own right. It is important to keep in mind prohibitions against self-disclosure within certain ethnic and cultural groups. Some members may have been harmed by past self-disclosure, and others may be hesitant to make any personal disclosures. Group members may avoid participating by remaining quiet and allowing other members to talk and do work.
3. *Maintaining confidentiality* is a potential risk in every group. Some of the disclosures made during a session may not remain in the group. Group leaders need to continually emphasize the importance of maintaining confidentiality. Even when they do so, however, the possibility remains that some members will talk inappropriately about what was discussed in the group.
4. *Scapegoating* may occur. Occasionally an individual member may be singled out as the scapegoat of the group. Other group members may "gang up" on this person, making the member the focus of hostile and negative confrontation. Clearly, the group leader should take firm steps to eliminate this behavior and explore what is happening within the group. Generally, it is a good practice for the leader to explore what is going on with the person doing the scapegoating before focusing on the person being scapegoated.
5. *Confrontation*, a valuable and powerful tool in any group, can be misused, especially when it is done in a destructive manner. Intrusive interventions, overly confrontive leader tactics, and pushing members beyond their limits

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often produce negative outcomes. Here, again, leaders (and members as well) must be on guard against behavior that can pose serious psychological risks for group participants. To lessen the risks of nonconstructive confrontation, leaders can model the type of confrontation that focuses on specific behaviors and avoids judgments of members. This type of confrontation is a direct challenge that comes from a place of support and empathy.

It is not realistic to expect that all personal risks can be eliminated, and to imply that they can be is to mislead prospective members. But it is essential that members be made aware of the major risks, that they have an opportunity to discuss their willingness and ability to deal with them, and that as many safeguards as possible be built into the structure of the group.

One way to minimize psychological risks in groups is to use a contract, in which the leader specifies his or her responsibilities and the members specify their commitment by stating what they are willing to explore and do in the group. A contract can reduce the chances that members will be exploited or will leave the group feeling that they have had a negative experience.

LO4

Confidentiality

You are a member of a group, and the group leader tells you that "anything said in this group stays in here." Does this satisfy any potential concern you may have regarding confidentiality?

One of the keystone conditions for effective group work is confidentiality. It is especially important because in leading a group you must not only keep the confidences of members but also get the members to keep one another's confidences. You must be concerned with your own ability to act ethically, but you also must respond to ethical dilemmas that may arise, sometimes outside of your control, between group members. In group therapy it may not be possible to prevent some members from disclosing personal information about others in the group. In a group, you have less control over how sessions progress, the nature and depth of disclosures, and what happens between sessions, particularly with respect to maintaining confidentiality (Lasky & Riva, 2006).

An ethical breach might involve a member disclosing personal information or details about one's personal history to someone not in the group. An example of a more subtle breach of confidentiality can occur when members come from a group of individuals that know each other from work or school. One member might say to another group member in front of colleagues or peers that she will see him at group. This casual breach of confidentiality may be unintended, yet it breaks the confidentiality of a member who may not want others to know he or she is in group counseling.

Wheeler and Bertram (2015) point out that the risk of breach of confidentiality is heightened when members of a counseling group engage in social media. Group counselors should address the parameters of online behavior through informed consent and are advised to establish ground rules whereby members agree not to post pictures, comments, or any type of confidential information about other

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members online. Developing rules that address the use of online discussion outside of the group should be part of the informed consent process and part of the discussion about group norms governing the group. One way for members to share their experience with others outside the group is for them to talk about their own experience, reactions, and insights without describing other members or mentioning others in the group by name. Members can be educated to talk about themselves rather than tell stories about other group members. For example, a member might say, "One thing I noticed about myself during group is that I tend to wait for the group leader to call on me rather than taking responsibility for bringing myself into the group." Another member might say, "I realized how many of us struggle with similar conflicts."

Educating Members About Confidentiality

It is a good practice for leaders to remind participants from time to time of the tendency to inadvertently reveal confidences in subtle ways. Educating members about how confidentiality can be unintentionally breached is critical. Group leaders are responsible for educating members about the importance and advantages of keeping information pertaining to the group private (Rapin, 2014). If confidentiality seems to be a matter of concern, the subject should be discussed fully in a group session. For example, a member who discloses personal information such as having an affair may be worried about having shared this information with others. The group leader can remind members about confidentiality as a way of reassuring the member who is disclosing.

A review of the literature on confidentiality in groups showed a lack of clear understanding of the concept of confidentiality and its limits on the part of both group members and leaders. A full discussion of confidentiality is of paramount importance not only because it respects the rights of group members to make autonomous choices, but also because it can influence the overall group experience. Group leaders do well to express the importance of maintaining confidentiality, have members sign contracts agreeing to it, and even impose some form of sanction on those who break it. It is good practice to have a policy statement on confidentiality and to revisit the topic whenever it is appropriate to do so.

Modeling the importance of maintaining confidentiality is crucial in setting norms for members to follow. If group members sense that the leader takes confidentiality seriously, there is a greater likelihood that they will also be concerned about the matter. Even though it is the leader's role to educate members about confidentiality and to monitor safeguarding of disclosures, the members also have a responsibility in respecting and safeguarding what others share in the group. On this topic, the American School Counselor Association (ASCA, 2010) has this standard: "Professional school counselors establish clear expectations in the group setting, and clearly state that confidentiality in group counseling cannot be guaranteed" (A.6.c).

Ethical and Legal Dimensions of Confidentiality

In working with groups, the rights to confidentiality of all the members must be safeguarded. Leaders have a responsibility to discuss any breaches with the group and to take action if a member breaks confidentiality. The American Counseling

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Association's *Code of Ethics* (ACA, 2014) makes this statement regarding confidentiality: "In group work, counselors clearly explain the importance and parameters of confidentiality for the specific group" (B.4.a).

Group counselors have an ethical and legal responsibility to inform group members of the potential consequences of breaching confidentiality. The leader should explain that legal privilege (confidentiality) does not apply to group treatment, unless provided by state statute (ASGW, 2008). In groups in institutions, agencies, and schools, where members know and have frequent contact with one another and with one another's associates outside of the group, confidentiality becomes especially critical and also more difficult to maintain. In an adolescent group in a high school, for example, great care must be exerted to ensure that whatever is discussed in the sessions is not taken out of the group. Group leaders must avoid talking to parents and teachers without the appropriate permission of the participants. If some members talk about things that happened in the group, the group process will come to a halt. People are not going to reveal facts about their personal lives unless they feel quite sure they can trust both the leader and the members to respect their confidences.

We expect that members will want to talk about their group experiences with significant people in their lives. We caution them, however, about breaking others' confidences in the process. We tell them to be careful not to mention others who were in the group or to talk about what others said and did. Generally, members do not violate confidentiality when they talk about *what* they learned in group sessions. But they are likely to breach confidentiality when they talk about *how* they acquired insights or how they interacted in a group. For example, Gerd becomes aware in a session that he invites women to take care of him, only to resent them for treating him like a child. He may want to say to his wife, "I realize I often resent you for the very thing I expect you to do." This is acceptable disclosure, but describing the group exercise involving several women in the group that led him to this insight could break confidentiality guidelines.

Leaders may be tested by some members of the group. For instance, a counselor may tell group participants in a juvenile correctional institution that whatever is discussed will remain in the group. The youths may not believe this and may in many subtle ways test the leader to discover whether in fact he or she will keep this promise. Group leaders must not promise to keep within the group material they may be required to disclose.

Limitations to confidentiality should be outlined in the informed consent process, and in mandatory groups counselors should inform members of any reporting procedures required of them. Group practitioners should also mention to members any documentation or record-keeping procedures that they may be required to keep that affect confidentiality. The ACA (2014) guideline with respect to confidentiality is as follows: "Counselors protect the confidential information of prospective and current clients. Counselors disclose information only with appropriate consent or with sound legal or ethical justification" (B.1.c).

In general, licensed psychologists, psychiatrists, licensed clinical social workers, licensed marriage and family therapists and, in many states, licensed professional counselors are legally entitled to privileged communication. The concept of

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privileged communication means that these professionals cannot break the confidence of clients unless (1) in their judgment, the clients are likely to do serious harm to themselves, others, and/or physical property; (2) abuse of children or the elderly is suspected; (3) they are ordered by a court to provide information; (4) they are supervisees in a supervisory relationship; or (5) the clients give specific written permission. However, when these professionals are conducting groups, in most states this legal privilege does not apply. The American Group Psychotherapy Association (AGPA, 2002) states: "The group therapist is knowledgeable about the limits of privileged communication as they apply to group therapy and informs group members of those limits" (2.2). Group counselors need to know whether their state protects privileged communication in groups. If privilege is not protected, the group leader needs to explain this special circumstance to group members. The absence of privileged communication does not remove the ethical responsibility to maintain confidentiality (Wheeler & Bertram, 2015). Although group leaders are themselves ethically and legally bound to maintain confidentiality, a group member who violates another member's confidences faces no legal consequences (Lasky & Riva, 2006).

Learning in Action

Google Your Classmate

As counselors we are held to a set of professional standards not only within our professional role but also outside of our role as helpers. Whether fair or not, counselors are often looked upon as role models. How we behave in private arenas can have a direct impact on how we (and our profession) are perceived by others.

Choose the name of a classmate in a random drawing, and conduct a Google search on that person. Look for this person on Facebook, Twitter, and other social media sites. If this person were your counselor, what did you see or read that could influence you positively or negatively? Tell the person what you found, and ask whether he or she would be comfortable having a potential client or group member see this information. Have the same discussion with the person who did a search on you. Do you think you might change your privacy settings or reconsider your postings on social media sites as a result of what you learned from this activity?

Multicultural Dimensions of Confidentiality

Confidentiality must be viewed in a cultural context: "Counselors maintain awareness and sensitivity regarding cultural meanings of confidentiality and privacy. Counselors respect differing views toward disclosure of information. Counselors hold ongoing discussions with clients as to how, when, and with whom information is to be shared" (ACA, 2014, B.1.a). In *Multicultural and Social Justice Competence Principles for Group Workers*, the ASGW (2012) addresses broad areas of race, ethnicity, socioeconomic class, age, gender, sexual orientation, religion, and spirituality. In *Multicultural and Social Justice Counseling Competencies*, the Association for Multicultural Counseling and Development (AMCD, 2015) highlights taking action to promote social justice and emphasizes teaching clients how to advocate for themselves.

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Culture may affect a member's views on confidentiality in the following ways:

- Some cultures consider therapy to be shameful and only for mentally ill people. To minimize any risks of breaking confidentiality, avoid leaving phone messages or sending mail to members' home addresses if they live with family members.
- Some group members may not have legal status or residency and may be guarded about providing personal information.
- Members who are seeking asylum or have refugee status may have significant trust issues and may give false personal information to protect themselves and their families.
- Some cultures promote sharing of all personal information with their families, and members could feel pressured to share details with their family members.
- Language barriers or reading difficulties may result in a member not fully understanding the importance of confidentiality and the consequences of breaches. Leaders should be sure that all members have fully comprehended this and other aspects of informed consent.

Confidentiality of Minors in Groups

A particularly delicate problem is safeguarding the confidentiality of minors in groups. Do parents have a right to information that is disclosed by their children in a group? The answer to that question depends on whether we are looking at it from a legal, ethical, or clinical viewpoint. State laws differ regarding counseling minors. It is important for group workers to be aware of the laws related to working with minors in the state in which they are practicing as well as local policies for those working in a school setting. Circumstances in which a minor may seek professional help without parental consent, defining an emancipated minor, or the rights of parents (or legal guardians) to have access to the records regarding the professional help received by their minor child vary according to state statutes.

A recent California statute allows minors who are 12 years or older to receive counseling if the practitioner determines that the minor is mature enough to participate intelligently in outpatient treatment or mental health counseling. The statute does require parental (or guardian) involvement in the treatment of the minor, unless the therapist finds, after consulting with the minor, that this involvement would be inappropriate under the circumstances. Therapists have the responsibility for noting in the client's records whether they attempted to contact the minor's parent or guardian, and whether this attempt was successful or unsuccessful, or why it was deemed inappropriate to make this contact. This law protects the right to seek treatment of certain populations of youth, such as young people from immigrant families, homeless youth, people who are gay, and young people from cultural backgrounds that do not condone receiving mental health services (Leslie, 2010).

Before any minor joins a group, best practice requires school counselors to notify parents or guardians that their children are participating (ASCA, 2010).

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Obtaining written permission from parents or guardians, even when this is not a legal requirement, is a good policy, especially for school counselors. Such a statement might include a brief description of the purpose of the group, the importance of confidentiality as a prerequisite to accomplishing these purposes, and the therapist's intention not to violate any confidences. Although it may be useful to give parents/guardians information about their child, this can be done without violating confidences. Parents/guardians may inquire about what their child has discussed in a group, and it is the responsibility of the group leader to inform them in advance of the importance of confidentiality. Parents/guardians can be told about the purpose of the group, and they can be given some feedback concerning their child, but care must be taken not to reveal specific things the child mentioned. One way to provide feedback to parents or guardians is through a session involving one or both parents/guardians, the child, and the group leader. Counselors may provide a general description or purpose for the group session and include suggestions for further discussion questions and topics between parents/guardians and the child. This is particularly useful for social skills groups and other psychoeducational groups with children and adolescents.

Group leaders have a responsibility in groups that involve children and adolescents to take measures to increase the chances that confidentiality will be kept. It is useful to teach minors, using a vocabulary that they are capable of understanding, about the nature, purposes, and limitations of confidentiality. It is helpful to inform and discuss with minors in advance their concerns about confidentiality and how it will be maintained, especially in a school setting. It is critical to teach minors about the limits of confidentiality. Such practices can strengthen the child's trust in the group counselor. It is a good idea for leaders to encourage members to initiate discussions on confidentiality whenever this becomes an issue for them.

It is important to work cooperatively with parents and legal guardians as well as to enlist the trust of the young people. Imagine you are leading a group for teens, and the grandparents of one of your members comes to see you after school and insist on knowing what their grandchild is talking about in group sessions.

- What are your initial concerns when thinking about how you would respond to the grandparents?
- What legal and ethical concerns or obligations do you have?
- What do you need to consider in terms of the relationship you have with the teenager as well as with the grandparents?
- Will the cultural background of the grandparents and the teen influence your response in any way?

A group counselor working with children may be expected to disclose some information to parents if they insist on it, or a leader of a group of parolees may be required to reveal to the members' parole officer any information acquired in the group concerning certain criminal offenses. It is a good policy for leaders to let members know when they may be required to testify against them in court.

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Summary Guidelines Regarding Confidentiality

Group leaders would do well to consider certain ramifications of confidentiality. Here are some summary guidelines concerning confidentiality in groups:

- Confidentiality is crucial to the success of a group, but the leader can do little to guarantee that the policy on confidentiality will be respected by all members. Leaders can only ensure confidentiality on their part, not on the part of others in the group.
- Group leaders must become familiar with the local and state laws that will have an effect on their practice. This is especially true in cases involving child molestation, neglect or abuse of older people and children, or incest.
- Group leaders describe at the outset the roles and responsibilities of all parties and the limits of confidentiality (APA, 2010, Standard 10.03).
- Members should be told about the limits of confidentiality so they can determine when, what, and how much personal information they will reveal in group sessions.
- Leaders have the responsibility of helping members, as well as parents or guardians of minors, understand the importance of maintaining confidentiality and for protecting the personal disclosures of other members.
- It is a wise policy to ask participants to sign a contract in which they agree not to discuss or write about what transpires in the sessions or talk about who was present.

It is imperative that the group leader emphasizes at various stages of the group's evolution the importance of maintaining confidentiality. This issue needs to be introduced during the individual screening interview, and it should be clarified at the initial group sessions. At appropriate times during the course of the group, the leader can remind the members not to discuss identities or specific situations. If at any time any member gives indications that confidentiality is not being respected, the leader has the responsibility of exploring this matter with the group as soon as possible.

LO5

The Role of the Leader's Values in the Group

As a group leader, what values of group members would you be inclined to challenge, even if members made it clear that they did not want to modify such values? How would you react if someone questions your values?

We can increase our effectiveness by becoming aware of the values we hold and the subtle and direct ways we might influence group members. We are better able to help clients discover what is right for them if we can appreciate their worldview and work to understand their value system. We may hold a very different set of values, but our ethical obligation is to assist group members in meeting therapeutic goals consistent with *their* worldview and values, not our own. The focus of group process is on the client. Our clients, not us, live with the consequences of the changes they make in a group. If members acknowledge that what they are doing is not enabling them to get what they want from life, then a group context is an ideal place for them to develop new ways of behaving.

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Ethical Aspects of Working With Values

The ACA's (2014) *Code of Ethics* reminds us to be aware of our values: "Counselors are aware of—and avoid imposing—their own values, attitudes, beliefs, and behaviors. Counselors respect the diversity of clients, trainees, and research participants and seek training in areas in which they are at risk of imposing their values onto their clients, especially when the counselor's values are inconsistent with the client's goals or are discriminatory in nature" (A.4.b). Members often bring a number of value-laden issues to a group: religion, spirituality, sexual orientation, abortion, divorce, and family problems. The purpose of the group is to help members clarify their beliefs and examine options that are most congruent with their own value system. Group counseling is not a forum in which leaders impose their value perspectives on members, nor is it a forum for any of the members to impose their values on others.

Values are often conveyed in a subtle way, even without conscious awareness. For instance, you may be firmly convinced that the following values are universal and good for us all: autonomy, freedom to make one's own choice, equality in relationships, and independence. But some group members are likely to adhere to a different set of universal values: interdependence, cooperation, loyalty to family, duty and obligation to parents, and putting the welfare of the family above self-interests. If you assume these members would be far better off by changing their values, you are likely to do them a disservice. Although you may not directly impose your values on them, your interventions could be aimed at getting them to do what you think is best for them. For example, assume that you hold a value that women should be primarily responsible for child care. You have a female client who expresses guilt over not being with her children more because of work. You might encourage her to work less or to stay home to alleviate her guilt. Because of your own biases, you might miss having her explore further the origin and meaning of her guilt.

Dealing With Conflicts of Values

LO6

When you find yourself struggling with an ethical dilemma over a values conflict, the best course to follow is to seek consultation in working through the situation so the appropriate standard of care is provided (Kocet & Herlihy, 2014). If group leaders disclose their personal values, easily influenced and dependent members may want to please the leader at all costs and hence assume the leader's values automatically. If you are having difficulty maintaining objectivity regarding a certain value, consider this your problem rather than the client's problem. Supervision or personal counseling can help you to understand why your personal values are entering into your professional work in an inappropriate way. At times you may be faced with ethical issues over sharp differences between your own values and certain values of some members of your group. For example, members from some cultural groups may use physical punishment to ensure obedience and conformity of their children to certain cultural values. It may be challenging for you to acknowledge their views of punishment as normative in their culture, or you may want to intervene by encouraging more positive parenting practices.

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Leaders must be clear about their own values and remain objective when working with values that are different from their own. We must learn to separate our personal values from the counseling process to the best of our ability. Kocet and Herlihy (2014) describe the process of intentionally setting aside our personal values to provide ethical and appropriate counseling as **ethical bracketing**. We need to take into consideration the ways we may influence our clients, either intentionally or unintentionally. Francis and Dugger (2014) emphasize the need for counselors to monitor the various ways they may communicate their values to clients "and be aware of how the power differential that exists within each counseling relationship may result in the imposition of their values" (p. 132). Take a moment to consider the ethical issues and values that you might find particularly challenging to "bracket" in your work with group members. How might these personal conflicts leak into your professional work, and how might you best safeguard against that happening?

Consider this scenario. A young woman is struggling with deciding whether to stay in college or drop out to get married. She tells the group that her family holds a traditional view of women and that in their culture it is more important for her to be married than to be educated. She feels ambivalent because she is enjoying her education, yet she does not want her family to be disappointed in her. The values you and other group members hold will influence how you relate to and respond to her; however, the group should not be used to persuade her to do what you (or they) think she should do. Your own values might favor staying in college at all costs, or they might favor dropping out to make her family happy. The key point is that it is not your role as leader to make this woman's decision for her, even if she asks you to do so. Your role is to provide a context in which she can examine her feelings, values, and behaviors and eventually arrive at a decision that she will be able to live with. The challenge is to support this client without disrespecting her family or cultural values.

Another factor to consider involves the tendency of some members to give advice and to push their values on other members. Clashes often occur between group members over the matter of values. When this occurs, it is the responsibility of the group leader to intervene so that members cannot impose their values on others in the group.

LO7

The Ethical Imperative of Addressing Diversity in Group Counseling

Debiak (2007) contends that attending to diversity in group psychotherapy is basic to competent group practice: "As the majority of those in the mental health professions have recognized their embeddedness in a heterosexual, White, middle-class worldview, the importance of multicultural competence in clinical work has emerged as an ethical imperative" (p. 10). Attending to and addressing diversity is both an ethical mandate and a route to more effective group work.

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Values and Working With Diversity

The values leaders bring to the group process must consciously acknowledge the reality of human diversity in our society. If leaders ignore some basic differences in people, they can hardly be doing what is in the best interests of the group members. ASGW (2008) guidelines require that leaders become aware of the multicultural context in group work, as can be seen in this recommendation regarding group practice:

> Group workers practice with broad sensitivity to client differences including but not limited to ethnic, gender, religious, sexual, psychological maturity, economic class, family history, physical characteristics or limitations, and geographic location. Group workers continuously seek information regarding the cultural issues of the diverse population with whom they are working both by interaction with participants and from using outside resources. (B.8)

Some of the *group norms* generally associated with group participation may not be congruent with the *cultural norms* and values of some clients. One person's sharing may look very different from another's based on his or her cultural upbringing and contextual factors. It is not necessary that everyone participate in the same manner within the same value system. It is essential that leaders provide an environment in which the members believe they are benefiting by participation in the group and that their learning is applicable to their everyday living.

Some group norms that we address in Chapter 6 include staying in the here and now, expressing feelings, asking for what one wants, being direct and honest, sharing personal problems with others, making oneself known to others, being willing to take risks, improving interpersonal communication, giving personal feedback to others, learning to take the initiative in talking, dealing directly with conflict, being willing to challenge others, and making decisions for oneself. Some individuals might have difficulty being direct because their culture values an indirect style of communication. Some members may experience difficulty in asking for time in the group, largely because they have learned from their culture that to do so is rude, insensitive, and self-oriented. Rather than telling these members to speak up or to rely on them to initiate self-disclosure, it may be helpful to ask them to consider sharing at least one reaction they had as they listened to a particular member speak. By providing some structure, you can encourage members to express themselves in a less threatening way. In cultures that place emphasis on respecting power and status, a person is more likely to participate when asked to do so in a specific rather than a general manner.

Some members will not be comfortable making decisions for themselves without considering their extended family. Although some group interventions are designed to assist members in more freely expressing their feelings, certain members could find this offensive. Because of their cultural conditioning, they are likely to be very slow to express emotions openly or to talking freely about problems within their family. They may have been taught that it is good to withhold their feelings and that it is improper to display emotional reactions publicly.

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One group member we worked with said that the way of sharing in the group felt unrealistic to her. She remarked that if she were to speak this way in her country of origin, she would be shunned by her own people. Another group member expressed frustration with the pressure from group members and leaders to speak up. She commented to the group that in order for others to understand her words, they must first understand her silence. This was a powerful communication to the group. By respecting her reasons for being silent, members were able to connect with her and to learn more about the value she placed on silence both in her culture and in her participation in the group. Exploration of cultural differences does not always end in resolution of those differences. However, if these subtle and more obvious cultural factors go unnoticed or are ignored by leaders, it can negatively influence the participation of those members. In addition, it means we are not practicing the cultural competencies we are required to have to guide our work.

Cultural diversity affects the issues that members bring to a group and the ways in which they might be either ready or reluctant to explore these issues. As a group counselor, it is of paramount importance that you sensitize yourself to the clues members often give indicating that they would like to talk about some aspect of how their culture is affecting their participation in the group. You need to determine with group members what particular behaviors they are interested in changing. Even if you prize being direct and assertive, it is not your place to insist that members embrace your view of desirable behaviors. Leaders need to work with members to help them identify what they hope to get from the group.

Ethics and Standards of Preparation and Practice

The ethics codes of most of the professional organizations now emphasize the practitioner's responsibility to have a general understanding of the cultural values of his or her clients, so interventions are congruent with their worldviews. The guidelines for competence in diversity issues in group practice have been drawn from a variety of professional associations, including the ACA (2014), the ASGW (2012), and the AMCD (2015). Refer again to the awareness, knowledge, and skills competencies associated with becoming a culturally skilled group counselor that were discussed in Chapter 1. In working with groups characterized by diversity, counselors need to be aware of the assumptions they make about people based on factors such as race, ethnicity, or sexual orientation. It is essential that the goals and processes of the group match the cultural values of the group members. Group workers are challenged to monitor any tendencies to treat people on the basis of stereotypes. To be able to do this, group leaders need to first become aware of their biases based on age, disability, ethnicity, gender, race, religion, social status, and sexual orientation. The best way to examine our own biases is to engage in experiential exercises and other meaningful encounters that require critical thinking and self-examination. For most people, this journey of self-discovery happens most profoundly in relationship with others, especially those who differ from us in a variety of ways. It is difficult to uproot our own biases (and other "isms") if we continue to talk mainly with people who think, feel, and live as we do.

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Social Justice Approach to Group Counseling

LO8

The concept of **social justice** "is based on the idea that society gives individuals and groups fair treatment and an equal share of benefits, resources, and opportunities" (Chung & Bemak, 2012, p. 26). As a microcosm of society, groups provide a context for addressing issues of power, privilege, discrimination, and oppression. The *Ethical Standards for School Counselors* (ASCA, 2010) offers the following guideline regarding the social justice mandate: "Professional school counselors monitor and expand personal multicultural and social justice advocacy awareness, knowledge and skills. School counselors strive for exemplary cultural competence by ensuring personal beliefs or values are not imposed on students or other stakeholders" (E.2.a).

As a microcosm of society, groups provide a context for addressing issues of power, privilege, discrimination, and oppression.

Group work often provides the potential to further a social justice agenda. MacNair-Semands (2007) claims that group workers need to search for innovative ways of expanding their competence in addressing social justice issues—such as unfair treatment or inequities that result from racism, sexism, socioeconomics, sexual orientation, ableism, and other forms of "isms" that affect the quality of life—because they emerge regularly in groups. These social inequalities often arise from an intolerance for differences that result in discrimination, oppression, prejudice, and, at times, interpersonal violence. Group leaders have an opportunity to transform the group experience and work toward healing rather than perpetuating these harmful interactions. Leaders can assist group members in expanding their perspectives to understand nuances in the interactions of culturally diverse members.

Many who participate in groups have been discriminated against and oppressed, and because of this they may display healthy suspicions about being involved in a group. By recognizing how these systems may have influenced the psychological health of members, we can ensure that the group experience does not become another force of oppression. Individuals can be encouraged to talk about their pain and the social injustices they have encountered. Power and privilege dynamics operate in a group, and the group is a place where the imbalance of power can be addressed and explored. Those who are in a position of power can perpetuate social injustices, either intentionally or unintentionally. In any group, we may have people with power and those who have been denied power. This can certainly be talked about as these power dynamics emerge in a group.

The main goal is for a group to provide a safe place for members to talk about painful, harmful events and to experience opportunities for healing. Anderson (2007) contends that considerable harm is possible when diversity exists within a group and the leader fails to use a multicultural approach to assessment, diagnosis, and treatment planning. Anderson states, "Multicultural group workers should be keenly aware of differential power, status, and wealth that may result in oppression and victimization or the recapitulation of oppression and victimization" (p. 232).

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Anderson (2007) believes multicultural group work may be one of the most powerful therapeutic interventions, and a group can be a force for healing and development. At the same time, a group has the potential to be oppressive: "The ultimate ethical violation of group work is to allow the forces of group process to be an instrument of harm or injury to a client—to be oppressive" (p. 231). Chung and Bemak (2012) underscore the importance of courage: "One cornerstone of doing multicultural social justice work is courage. Courage is the remedy for fear, and fear is ever present in today's world" (p. 266). Singh and Salazar (2010c) believe that group work offers a forum for "courageous conversations" on social justice issues. There are opportunities to address power and privilege dynamics and social injustices as these factors emerge in a group.

Group counselors who base their practice on aspirational ethics will need to involve themselves in opposing all forms of discrimination and oppression and be committed to challenging inherent inequities in social systems. Social justice is "the fair and equitable distribution of power, resources, and obligations in society to all people, regardless of race, gender, ability status, sexual orientation, and religious or spiritual background" (Hage, Mason, & Kim, 2010, p. 103). Social justice issues often surface when people from diverse backgrounds participate in a group. Groups with social justice themes acknowledge and empower people from diverse social identities. These groups also create identity-affirming environments that advocate for the empowerment of marginalized individuals and communities (Hage et al., 2010).

A social justice perspective involves thinking about the therapeutic enterprise and ethics beyond a traditional framework. It calls upon group counselors to recognize and address issues of social privilege and hierarchical power structures both as a part of the group experience and in daily life (Hage et al., 2010). Counseling for social justice requires a paradigm shift. Traditional helping paradigms focus on changing an individual's thoughts, feelings, and behaviors, whereas the social justice model looks beyond the individual to other highly influential factors in the lives of clients (Chung & Bemak, 2012). To be able to translate this paradigm shift into one's practice of group work, it is necessary to acquire a set of social justice and advocacy competencies. The counseling profession "must move beyond the traditional helping paradigm . . . [and be] proactive in advocacy and social change" (p. 42).

Counseling for social justice requires a paradigm shift.

Social justice practice, training, and research are interdependent. Effective training is necessary if group workers hope to understand and address the multiple layers of complexity involved in social justice group work. Hays, Arredondo, Gladding, and Toporek, (2010) discuss ways of integrating social justice in group work. To integrate social justice effectively, it is essential that group workers be mindful about social justice components within a group. Hays and colleagues offer the following recommendations for integrating social justice in group work:

- Group leaders must find new ways of developing groups that will promote equity, access, participation, and harmony.
- Leaders must promote egalitarianism by educating group members about their rights and assisting them in assuming an active role in bringing about social change.

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- Leaders have the responsibility to encourage discussion about identity development processes, cultural concerns, and privilege and oppression, and how these factors might affect group process and group members.
- Leaders should focus on how client systems influence group process and outcomes and conduct a cultural assessment of all group members.
- Group leaders can empower the members of their groups by building on the strengths of individual group members and the resources of the group as a whole.

An overarching theme is the centrality of multicultural competence as a basis for doing effective social justice–oriented group work. To deepen the leaders' awareness of social justice as a basic value, it is necessary for supervisors to create a climate that encourages open discussion of social justice topics.

LO9

Special Issues Pertaining to Sexual Orientation

The ethics codes of the ACA, the APA, and the National Association of Social Workers (NASW) clearly state that discrimination on the basis of minority status—be it race, ethnicity, gender, or sexual orientation—is unethical and unacceptable. Included under sexual minority status are people who are lesbian, gay, bisexual, transgender, or are questioning their sexual orientation (Goodrich & Luke, 2015). Working with lesbian, gay, bisexual, transgender, and questioning (LGBTQ) individuals presents a challenge to group counselors who hold more traditional values and must guard against imposing their own values and attitudes on group members. Group leaders have a right to their own values and beliefs, but as counselors it is neither our role nor our right to impose these value judgments or beliefs on our clients. Group members who identify as LGBTQ come to us with a history of victimization and fear of abandonment. As group leaders, we cannot meet them with judgment and possible rejection. We understand that this duty to serve the LGBTQ community and its members may come into direct conflict with some counselors' religious, moral, and ethical standards. As with all cases in which our personal values conflict with our ethical duties, it is essential for clinicians to work with supervisors, colleagues, or through personal counseling, to find ways to separate their personal beliefs from their duty to clients.

Heterosexism can leak out in various ways, ranging from blatantly discriminating to more subtle and covert messages of disapproval. Regardless of the intensity of the offense, the result can be damaging to group members and to your own status as a professional. Some therapists have communicated to clients that they do not approve of their sexual identity and sexual orientation and cannot continue to work with them because of moral or religious beliefs, and countless stories from people who identify as LGBTQ indicate that they have felt judged, ridiculed, embarrassed, and pressured to be less than who they are by mental health practitioners as a result of their sexual identity and sexual orientation. Unless group counselors become conscious of their own biases, heterosexism, and homophobia, they may project their misconceptions and their fears onto those in their groups in subtle and not so subtle ways. It is essential that group practitioners be willing to

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critically examine their personal prejudices, myths, fears, and stereotypes regarding sexual identity and sexual orientation.

We can understand the difficulty that interns and therapists face with deep value conflicts, but the bottom line is always the same: In therapy it is not about us; a client's needs and welfare come before our own. The relationship is not an equal one, nor is it one in which we as clinicians are required to feel comfortable with our clients' choices. We step into our role as therapist to serve our clients and to help them resolve conflicts, heal, and grow in the ways that are most congruent with their values, not our own. In our opinion, it is not appropriate for group leaders to disclose their values when it comes to topics such as abortion, religion, divorce, and same-sex relationships. We prefer to be invested in the process with our clients rather than being wedded to a specific outcome. In some circumstances it may be appropriate and even facilitative to self-disclose, but we caution leaders to weigh heavily the costs against the possible benefits of making certain disclosures regarding their values. Reflect on the purpose of the disclosure, and ask yourself whether you are more likely to regret making a self-disclosure or not disclosing. If you do not work to keep your values from becoming overt judgments or hidden agendas, you are likely to break the code of ethics and standards guiding our profession. Consultation with a peer or supervisor may help you realize the potential benefits or consequences of self-disclosure.

The American Psychological Association's Division 44 (APA, 2000) has developed a set of guidelines for psychotherapy with lesbian, gay, and bisexual clients. In many respects lesbian, gay, bisexual, and transgender clients share common ground with heterosexual clients in groups, but some ethical concerns increase (Goodrich & Luke, 2015). Group practitioners who work with LGBTQ clients have a responsibility to understand the unique concerns these clients may bring to the group and are expected to develop the knowledge and skills to competently deliver services to them. We need to be willing and able to listen deeply to our clients and to encourage them to help us to understand their unique experience of the world. Being able to do this often involves continuing education, seeking supervision, and being willing to consult.

The Association for Lesbian, Gay, Bisexual and Transgender Issues in Counseling (ALGBTIC, 2008) lists these attributes of effective group counselors:

- Counselors are sensitive to the dynamics that occur when groups are formed that include only one representative of any minority culture.
- Counselors establish group norms and make interventions that facilitate the safety and inclusion of LGBTQ group members.
- Counselors strive to establish group norms and create a climate that allows for voluntary self-identification and self-disclosure on the part of LGBTQ clients.
- Counselors take an active stance when other members express either overt or covert disrespect of LGBTQ group members.

Are there any specific attitudes, beliefs, assumptions, and values you hold that might interfere with your ability to effectively work with lesbian, gay, bisexual, transgender, and questioning clients in your groups? If you do become aware of some personal limitations at this time, what changes would you consider making? How would you challenge certain of your attitudes and assumptions pertaining

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to any of the aforementioned guidelines? For more information on this topic, we recommend *Group Counseling With LGBTQI Persons* (Goodrich & Luke, 2015), *The Handbook of Counseling and Psychotherapy With Lesbian, Gay, Bisexual, and Transgender Clients* (Bieschke, Perez, & DeBord, 2006), and *Casebook for Counseling Lesbian, Gay, Bisexual, and Transgender Persons and Their Families* (Dworkin & Pope, 2012).

LO10

Ethical Concerns in Using Group Techniques

Group techniques can be used to facilitate the movement of a group and to deepen and intensify certain feelings. Although it is unrealistic to expect that leaders will always know exactly what will result from an intervention, they should know how to cope with unexpected outcomes. It is extremely important for group leaders to have a clear rationale for using each technique. This is an area in which theory can be a useful guide for practice.

Techniques can be abused or used in unethical ways. Here are some ways leaders might employ techniques unethically:

- Using techniques with which they are unfamiliar
- Using techniques to enhance their power
- Using techniques whose sole purpose is to create intensity between members or within the group
- Using techniques to pressure members, even when they have expressed a desire not to participate in an exercise
- Using techniques to alter a group member's personal values or beliefs

Group leaders have a responsibility to exercise caution in using techniques, especially if these methods are likely to result in the release of intense feelings. It is important that the leader has had appropriate training to cope with the powerful feelings that can be triggered by certain role-playing activities. For example, guided fantasies into times of loneliness as a child or physical exercises designed to release anger can lead to intense emotional experiences. If leaders use such techniques, they must be ready to deal with any emotional release. Group leaders need to become aware of the potential for encouraging catharsis to fulfill their own needs. Some leaders push people to express anger, and they develop techniques to bring about this catharsis. Although these are legitimate feelings, expressing anger in the group may satisfy the leader's agenda more than it meets the needs of the members. This question ought to be raised frequently: "Whose needs are primary, and whose needs are being met—the members' or the leader's?" If you push members to express intense emotion, do you know what to do once emotions are released?

Another major ethical issue pertaining to the use of group techniques relates to providing immediate help for any group member who shows extreme distress during or at the end of a group session, especially if techniques were used to elicit intense emotions. Although some unfinished business promotes growth, the client should not feel abandoned at the end of a session that incited strong emotional reactions because time has run out. Leaders must take care to allow enough time to deal adequately with the reactions that were stimulated in a session. It is unwise to

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introduce techniques in a session when there is not enough time to work through the feelings that might result, or in a setting where there is no privacy or where the physical setup would make it harmful to employ certain techniques. Adequate time needs to be allotted to closing each group session.

Group leaders need to understand the potential adverse effects of certain techniques. One way for group leaders to learn is by taking part in groups themselves. By being a group member and first experiencing a range of techniques, a therapist can develop a healthy respect for using techniques appropriately to meet clients' needs. In our training workshops for group leaders, we encourage spontaneity and inventiveness in the use of techniques, but we also stress the importance of striking a balance between creativity and irresponsibility.

The reputation of group work has suffered from the actions of irresponsible practitioners, mostly those who use techniques randomly without a clear rationale or without any sense of the potential outcome. If the group leader has a strong academic background, has had extensive supervised group experience, has participated in his or her own therapy or personal-growth experience, and has a basic respect for clients, he or she is not likely to abuse techniques. Group techniques are a means to an end, not an end in themselves. For a more in-depth treatment of using group techniques in an ethical and effective manner, see *Group Techniques* (Corey, Corey, Callanan, & Russell, 2015).

Group techniques are a means to an end, not an end in themselves.

LO11

Competence and Training of Group Counselors

Experienced as well as beginning group leaders must provide only those services and use only those techniques for which they are qualified by training and experience. It is our responsibility to market our professional services to accurately represent our competence. Although we encourage you to think of creative ways of reaching diverse populations, we also emphasize the need for adequate training and supervision in leading groups with such members. If we lead groups that are clearly beyond the scope of our preparation, we are practicing unethically and are at risk for malpractice.

Competence as an Ongoing Developmental Process

Different groups require different leader qualifications. Some professionals who are highly qualified to work with college students are not qualified to lead children's groups. For example, professionals who are trained to lead psychoeducational groups may lack either the training or the experience necessary to administer group therapy to an outpatient population. The basic question is: Who is qualified to lead *this type* of group with *this type* of population?

Competence is one of the major ethical issues in group work. Lacking adequate training or experience, some leaders hastily gather a group together without taking the time to screen members or to prepare them for a group. Many interns and even some professionals may be placed in situations in which they are expected to lead groups despite having little or no training to do so. Professional group workers

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know their limitations. They familiarize themselves with referral resources and do not attempt to work with clients who need special help beyond their level of competence. An ASCA (2010) guideline states "professional school counselors develop professional competencies, and maintain appropriate education, training, and supervision in group facilitation and any topics specific to the group" (A.6.e). Furthermore, responsible group workers are keenly aware of the importance of continuing their education. Even licensed and experienced professionals attend conventions and workshops, take courses, seek consultation and supervision, and get involved in special training programs from time to time.

Professional competence is not arrived at once and for all. Rather, professional growth is an ongoing developmental process for the duration of your career. The "Best Practice Guidelines" (ASGW, 2008, A.8) provide these general suggestions for increasing one's level of competence as a group worker:

- Remain current and increase knowledge and skill competencies through activities such as continuing education, professional supervision, and participation in personal and professional development activities.
- Seek consultation and supervision to ensure effective practice regarding ethical concerns that interfere with effective functioning as a group leader.
- Seek appropriate professional assistance for personal problems or conflicts that are likely to impair professional judgment or work performance.

Competent group workers have reasons for the activities they suggest in a group. They are able to explain to their clients the theory behind their group work and how it influences their practice. They can tell the members in clear language the goals of a group, and they can state the relationship between the way they lead the group and these goals. Effective group leaders are able to conceptualize the group process and to relate what they do in a group to this model. They continually refine their techniques in light of their model.

Professional Training Standards for Group Counselors LO12 LO13

For proficient group leaders to emerge, a training program must make group work a priority. Various professional organizations have identified training standards for group counselors. The "Professional Standards for the Training of Group Workers" (ASGW, 2000) specifies two levels of competencies and related training. A set of core *knowledge* competencies and *skill* competencies provide the foundation on which *specialized* training is built. At a minimum, one group course should be included in a training program, and it should be structured to help students acquire the basic knowledge and skills needed to facilitate a group. These group skills are best mastered through supervised practice, which should include observation and participation in a group experience.

The Council for Accreditation of Counseling and Related Educational Programs (CACREP, 2016) identify the following standards specifically devoted to group work in which students in counseling are to develop a set of competencies:

a. theoretical foundations of group counseling and group work
b. dynamics associated with group process and development
c. therapeutic factors and how they contribute to group effectiveness

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d. characteristics and functions of effective group leaders
e. approaches to group formation, including recruiting, screening, and selecting members
f. types of groups and other considerations that affect conducting groups in varied settings
g. ethical and culturally relevant strategies for designing and facilitating groups
h. direct experiences in which students participate as group members in a small group activity, approved by the program, for a minimum of 10 clock hours over the course of one academic term

Adjuncts to a Training Program

We highly recommend three types of experience as adjuncts to a training program: personal (private) psychotherapy, group therapy or a self-exploration group, and participation in group supervision.

Personal Psychotherapy for Group Leaders It is important for trainees to get involved in their own personal counseling, both individual and group. They can explore the biases that might hamper their receptiveness to clients, any unfinished business that might lead to distortions in their perceptions of group members, other needs that might either facilitate or inhibit the group process, current conflicts, and ways they can fully recognize and utilize their strengths. In short, group counselors demonstrate the courage to do for themselves what they expect members in their groups to do.

Self-Exploration Groups for Group Leaders We have discovered that participation in a self-exploration group (or some other type of interactive process-oriented group) is an extremely valuable adjunct to a group leader's internship training experiences. Beginning group leaders typically experience some anxiety regarding their adequacy, and their interactions with group members frequently lead to a surfacing of unresolved past or current problems. A therapeutic group provides an opportunity for trainees to explore these personal issues. In addition to the therapeutic value of this kind of a group, it can be a powerful teaching tool for the trainee.

Group Supervision for Group Leaders Group supervision with group counselors provides trainees with many experiential opportunities to learn about the process and development of a group. Group supervision is of paramount importance in training group leaders as well as in monitoring the quality of care of those who participate (Riva, 2014). Christensen and Kline (2000) emphasize that supervisees have many opportunities to learn through both participation and observation. Their investigation lent support to the numerous benefits of group supervision, a few of which include enhancement of knowledge and skills, ability to practice techniques in a safe and supportive environment, integration of theory and practice, richer understanding of patterns of group dynamics, opportunities to test one's assumptions, personal development through connection with others, and opportunities for self-disclosure and for giving and receiving feedback. By being in a supervision group, trainees learn not only from the supervisors who conduct

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the group but also from others in the group by the questions they raise and the discussion that follows.

Group supervision lends itself to a variety of role-playing approaches that enable trainees to become aware of potential countertransference issues and to acquire alternative perspectives in working with group members they perceive as being "difficult." A trainee can assume the role of a member of his or her group by role-playing this member while the supervisor demonstrates other ways to deal with a group member who displays problematic behavior. Other trainees in the supervision group can assume various roles for one another, which often generates rich discussion material after a situation is enacted. Role-playing techniques tend to bring concrete situations to life. Instead of merely *talking about problems* with clients, trainees can bring these concerns to life by enacting them in the here and now.

Although a supervision group is not a therapy group, it can lead to insights and awareness. Trainees can learn a great deal about their response to criticism, their competitiveness, their need for approval, their jealousies, their anxieties over being competent, their feelings about certain members of the group they lead, and their power struggles with coleaders or members of their group. Trainees can gain insights into their personal dynamics, such as potential areas of countertransference, which can influence their ability to competently facilitate groups. By identifying areas that can lead to countertransference, trainees are in a position to do further work in their own therapy outside of the group.

Ethical Issues in Training Group Counselors

LO14

One controversial ethical issue in the preparation of group leaders involves combining experiential and didactic methods in training. We consider an experiential component to be essential in teaching group counseling courses. Struggling with trusting a group of strangers, risking vulnerability, receiving genuine support from others, developing good working relationships with peers, and being challenged to examine the impact of one's behavior on others are all vital learning experiences for future group leaders. We think group experience for leaders is indispensable, if for no reason other than that it provides an understanding of what clients face.

Although it is common practice to combine the didactic and experiential aspects of learning in group work courses, doing so requires educators to address a number of ethical considerations, such as learning to work effectively within the context of multiple roles. In experiential training, participants engage in self-exploration and deal with interpersonal issues within the training group as a way of learning how to best facilitate groups. It is our position that the potential risks of experiential methods are offset by the clear benefits to participants who become personally involved in experiential group work as a supplement to didactic approaches to group courses. Many group work educators see a need for an experiential component to assist students in acquiring the skills necessary to become effective group leaders.

Managing Multiple Roles as an Educator Group work educators must manage multiple roles and fulfill many responsibilities to their trainees, some of which

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include facilitator of a group, teacher, evaluator, and supervisor. Faculty who teach group courses cannot realistically be restricted to a singular role in teaching. At various times educators may teach group process concepts, lead a demonstration group in class, set up an exercise to illustrate an intervention in a group situation, and evaluate students' work.

Although there have been some ethical problems in the attempt to train using experiential approaches, we do not think this warrants the conclusion that experiential approaches are inappropriate or unethical. Overcorrection of a problem of potential abuse does not seem justified to us. Teaching group process by involving students in personal ways is the best way for them to learn how to eventually set up and facilitate groups. We agree with Stockton, Morran, and Chang (2014) who point out that there is a fine line between offering experiential activities and safeguarding against gaining information that could be used in evaluating students. Faculty who use experiential approaches are often involved in performing multiple roles, and they need to exercise caution so that they offer training opportunities that will be ethical and efficacious (Stockton et al., 2014). When experiential activities are used, faculty can preface the activity by discussing the boundaries and limitations of student self-disclosure while promoting the importance of self-reflection throughout the process.

The Benefits of Experiential Group Training The CACREP (2016) standards require students to gain at least 10 hours of experience in a small group as a group member. This requirement is typically met by structuring an experiential group as part of a group counseling course. Students often have an opportunity to be part of a group experience and at times to facilitate the process of this group. In an experiential learning environment that involves extensive self-disclosure and dual relationships between instructors and students, students need to know they can trust their instructor's skill, ethics, and professionalism. Students engaged in experiential training must be willing to engage in self-disclosure, to become active participants in an interpersonal group, and to engage themselves on an emotional as well as a cognitive level.

Research on including experiential groups in a training program has increased over the past decade. St. Pierre's (2014) survey of ACA members found that a key factor contributing to students feeling comfortable in the group experience is the perception that the instructor is competent. McCarthy, Falco, and Villalba (2014) "believe strongly in the ability of students to overcome their initial reluctance to share more openly and trust each other, particularly since this is what they will ask of members when they lead groups" (p. 187). Luke and Kiweewa (2010) found that participation in experiential groups has many benefits in the areas of personal growth and awareness in addition to offering opportunities for learning about group process. In a qualitative study of an experiential group led by doctoral students, Ieva, Ohrt, Swank, and Young (2009) found that the master's students experienced personal growth, professional growth, and a better understanding of the group process, self-awareness, empathy for future clients, and an enhanced ability to give and receive feedback.

In a study of graduate students that addressed group leaders' perceptions of their training and experiences, Ohrt, Frier, Porter, and Young (2014) reported

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that participants expressed appreciation for opportunities to gain practice and have responsibilities, both in the group class and in the community and schools. Although initially hesitant about being required to be in a group, participants gained valuable knowledge about group dynamics, leadership in action, effectively managing conflicts, and seeing the stages of a group unfold. Participants welcomed the opportunity to colead groups with an experienced leader and learned a good deal by the modeling they observed.

Keeping the Purpose of the Group Course in Perspective It is essential to keep in mind the primary purpose of a group counseling course, which is teaching students leadership skills and providing an understanding of how group process works. Although the main aim of a group course is not to provide personal therapy for students, participating in such a group is inevitably a therapeutic and growth-enhancing learning experience. Encouraging students to make decisions about what personal concerns they are willing to share and to determine the depth of their personal disclosures leads to a more productive group experience that reinforces the importance of empowering their clients and group members to determine the nature and extent of their own self-disclosures.

A group course is not designed to be a substitute for an intensive self-exploration experience, yet learning about how groups function can be enhanced through active and personal participation in the group process. If students take personal risks, they are bound to be uncomfortable at times. Being willing to explore the meaning of their discomfort rather than seeking comfort at all costs can provide insight into how their future clients may be feeling as they begin counseling. If the leader is capable, professional, and well-acquainted with complex experiential group issues such as dual relationships, the leader will provide a safe group space. The facilitator should keep in mind the main purpose and objective of the training group and the best interests of the participants.

The focus of a small group for trainees can be on what is happening in the here and now. There is rich material in what takes place among members in a group. For example, some people find dealing with conflict quite difficult and uncomfortable, perhaps due to the way conflict was handled in their family of origin. By encouraging members to directly address the conflict in the group and work toward its resolution, trainees can see the value of working through conflict (rather than avoiding it) and have a corrective experience. Students can profit, both personally and professionally, by learning how to manage conflicts as a group member. Counselors-in-training need to understand their own reactions to conflict and see the conflict resolution process being modeled in a healthy and constructive manner. If members openly and honestly learn to deal with one another, they will make great strides toward learning how to facilitate a group and how to improve their own interpersonal functioning.

Dealing With Problematic Student Behaviors That Emerge in a Group Educators also have a monitoring (or "gatekeeping") function, especially in intervening when students demonstrate unhealthy, unproductive, or damaging behavior, are unable to give or receive feedback appropriately, or are unable to relate to others effectively. Group work educators have a responsibility to the

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students, future clients, the profession, the community, and the training institution to take action when students in a group course give evidence that they are not suited personally to working as group facilitators. Goodrich and Luke (2012) have written about the ethical issues in dealing with students who exhibit problematic behavior in an experiential group. Group work is inevitably one setting in which students' unhealthy aspects may be exposed. When this situation arises, the group counselor-educator has multiple responsibilities: (a) to the individual student who displays problematic behavior, (b) to the other students in the experiential group, and (c) to the training program.

A multitude of problematic behaviors can disrupt the cohesion of a group and impede the learning of the other members. Behavior patterns such as these can be identified and explored in an experiential group: (a) members who habitually give others advice, yet remain unknown; (b) members who are hostile and make it difficult for others to feel safe; (c) members who are judgmental and critical; (d) arrogant members who are convinced they can learn little in an experiential group; (e) members who monopolize time in the group; and (f) members who have a difficult time attending to others. The group format provides excellent opportunities for learning to deal with challenging behaviors. One effective intervention is to simply invite other members to provide here-and-now feedback to the member exhibiting the problematic behavior. The instructor or group facilitator must block unproductive interactions while this feedback is being delivered to prevent the group member from being scapegoated or overwhelmed with negative feedback. It is important to remember that the point is for the group member to understand the impact of his or her behavior, not to cause the member to become even more defensive. As difficult and tense as it might be in the moment, everyone in the group may benefit from the experience of successfully working through the conflict.

When a student trainee manifests problematic behaviors in the group setting, the instructor is responsible for giving the student honest and sensitive feedback about his or her behavior, providing suggestions on how to remediate problematic behavior, and explaining the policies and processes established to remediate the situation. For this to be effective, the instructor needs to be reasonably skilled at switching from the group leader role to the counselor-educator gatekeeper role, and back to the group leader role. Some behavior patterns may persist, and the student may not be open to self-reflection and change. Group work instructors have a responsibility to protect the other group members, and this may involve scheduling an individual meeting with the student to discuss how his or her interactions are detrimental to the group process and to provide support to help the student continue to make gains both personally and professionally through the experience.

Informed Consent and Experiential Learning Students have a right to be informed of the specific nature of course and program requirements before they enter a program and to be aware that many aspects of their program will involve their participating in personal ways to learn both about themselves and to learn the art of counseling. Students who apply to a counseling program

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must be made aware of the fact that counseling involves a personal investment, which goes beyond gaining knowledge and acquiring skills. Prospective students need to be cognizant that they will be affected personally in many of their courses (as well as throughout their careers). Students have a right to be informed about the ramifications of self-disclosing personal information in an academic setting, as well as being told about the rationale for becoming personally involved in their program. Prospective students who harbor negative attitudes about this approach to learning may need to be advised to explore other educational opportunities or career paths that do not require such a personal investment.

Shumaker, Ortiz, and Brenninkmeyer (2011) recommend that experiential groups include a detailed informed consent process and train students in learning what constitutes appropriate self-disclosure in such a group. Clear guidelines must be established so students know their rights and responsibilities. We echo the importance of a thorough informed consent process and recognize that it puts pressure on both the instructor and the students as it requires honesty, maturity, and professionalism. Even with safeguards in place, students may be hesitant to share meaningful personal information if they have an undue fear of the gatekeeping function of the experiential part of the group class. Group leaders should be prepared to understand and process this hesitation in a way that respects students' concerns. In addition, systematic self-reflection on the part of the instructor is a critical component for promoting a positive experiential group experience.

At the first class meeting of a group course we teach, we discuss some of the potential problems, challenges, and benefits inherent in a course that combines academic and personal learning. We tell the students that the experience of leading groups, even under supervision, often touches them in personal ways and brings to the surface their own personal struggles. Students become aware of the rationale for them getting involved in personal ways in learning group counseling. Students learn that they will not be able to encourage their future clients to deal with pain in their lives if they have not become aware of their own unresolved personal issues and dealt with their own personal pain. We encourage students taking the group course to consider seeking some form of personal counseling as a way to deal with the personal concerns that may emerge for them as group trainees.

We take care to combine both the experiential and didactic dimensions in our group counseling courses because we believe this balance is crucial for learning how to lead groups. As emotionally intense as the groups may become, we do not abandon the educational dimension. We operate on the premise that students can be involved in personal self-exploration and still put their learning into a cognitive framework. Students have the opportunity both to be a member and to colead with another student, always with a supervisor in the group. Self-reflection time with the supervisor following the group session is provided so students can process their coleadership experience. Students typically have reservations at the beginning of their small group, but they gain confidence as they challenge these reservations. In talking about their fears,

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doubts, and concerns, they are fully present in the group and see many of the group process concepts come to life. Once students experience a group, they can talk more meaningfully about how to create trust in a group, how to invite honest interaction among the members, how to challenge reluctant behavior, how to establish helpful group norms, and how to build a cohesive group community.

LO15

Guidelines for Ethical and Legal Practice

Most professional organizations affirm that practitioners should be aware of the prevailing community standards and of the possible impact on their practice of deviation from these standards. Ethical and legal issues are frequently intertwined, which makes it imperative that group practitioners not only follow the code of ethics of their profession but that they also know their state's laws and their legal boundaries and responsibilities.

Those leaders who work with groups of children, adolescents, and certain involuntary populations are especially advised to learn the laws restricting group work. Issues such as confidentiality, parental consent, informed consent, record keeping, protection of member welfare, and civil rights of institutionalized patients are a few areas in which group workers must be knowledgeable. Because most group workers do not possess detailed legal knowledge, it is a good idea to obtain some legal information concerning group procedures and practices. Awareness of legal rights and responsibilities as they pertain to group work protects not only clients but also those who conduct groups from needless lawsuits arising from negligence or ignorance.

Legal Liability and Malpractice

Group counselors who fail to exercise due care and act in good faith are liable to a civil suit. Professionals leading groups are expected to practice within the code of ethics of their particular profession and to abide by legal standards. Practitioners are subject to civil liability for not doing right or for doing wrong to another. If group members can prove that personal injury or psychological harm is due to a group leader's failure to render proper service, either through negligence or ignorance, then this leader is open to a malpractice suit. Negligence consists of departing from the "standard of care"; that is, breaching the therapist's duty in providing what is determined as commonly accepted practices of others in the profession that leads to injury to the client.

Some aspects of this standard of care involve keeping careful records, consulting when necessary, and documenting your consultations. Consult and document all ethical and legal issues as well as the clinical implications that arise during your groups. In most situations it is a good idea to have consulted with three colleagues and to be sure that you cite each of these consultations in your case notes. In terms of documentation and record keeping, be aware of the guidelines and requirements of the setting in which you work. There are a variety of ways to keep group notes. Some leaders keep group process notes, and simply list the names of each

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group member in attendance. Others write individual notes on each group member and keep these notes in separate files. Knauss (2006) indicates that although notes written about the entire group may capture key themes at different points in a group, these notes can compromise the privacy and confidentiality of individual group members. Knauss recommends that group practitioners keep an individual record for each group member. Regardless of the method of record keeping, it is important to have some form of documentation of group sessions, treatment goals, and outcomes.

Legal Safeguards for Group Practitioners

LO16

The key to avoiding a malpractice suit is to maintain reasonable, ordinary, and prudent practices. The group leader guidelines that follow are useful in translating the terms *reasonable, ordinary,* and *prudent* into concrete actions.

1. Take time and exercise care in screening candidates for a group experience.
2. Give the potential members of your groups enough information to make informed choices about group participation, and do not mystify the group process. Develop written informed consent procedures at the outset of a group, and make sure that you review this information with the members. Doing this will go a long way toward building a trusting climate.
3. Obtain written parental or guardian consent when counseling minors in groups. This is generally a good practice even if not required by state law. However, know that if a parent or guardian denies this consent, the minor will not be able to participate in the counseling group.
4. Keep records of group sessions in compliance with codes of ethics and institutional policies. Keep relevant notes on each group member and each group session, especially if there are any concerns about a particular member.
5. Be aware of those situations in which you legally *must* break confidentiality. Explain to members the limits of confidentiality, such as when it must be breached.
6. Restrict your scope of practice to client populations for which you are prepared by virtue of your education, training, and experience.
7. Be aware of the state laws and the ethical guidelines of various professional organizations that limit your practice, as well as the policies of the agency for which you work. Inform members about these policies, and practice within the boundaries of these laws and policies.
8. Make it a practice to consult with colleagues or clinical supervisors whenever there is a potential ethical, legal, or clinical concern. Clearly document the nature of the consultation.
9. Have a clear standard of care that can be applied to your services, and communicate this standard to the members. The best safeguard against legal liability is to practice good client care.
10. Document reasons for a group member's termination and any referrals or recommendations given.
11. Do not promise the members of your group anything you cannot deliver. Help them realize that their degree of effort and commitment are the key factors in determining the outcomes of the group experience.

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12. Do not engage in sexual relationships with either current or former group members.
13. Make it a practice to assess the general progress of a group, and teach members how to evaluate their individual progress toward their own goals.
14. If you work for an agency or institution, have a contract that specifies the employer's legal liability for your professional functioning.
15. Learn how to assess and intervene in cases in which group participants pose a threat to themselves or others, and be sure to document actions taken.
16. Recognize when it is appropriate to refer a group member for another form of treatment.
17. Remain alert to the ways your personal reactions might inhibit the group process, and monitor your countertransference.
18. Be careful of meeting your own needs at the expense of the members of your group.
19. Incorporate established ethical standards in your practice of group work. Following the spirit of the ethics code of your professional organization is important.
20. The best way to protect yourself from a malpractice suit is to take preventive measures, such as not practicing outside the boundaries of your competence and creating collaborative relationships with the members of your groups.
21. Attend risk management workshops periodically with the goal of familiarizing yourself with current standards of practice.
22. Realize that you will never be completely safe from a potential claim or lawsuit, regardless of how competent and ethical you are. However, proactive risk management strategies can lessen the possibility of such claims. Carry malpractice insurance.

This discussion of ethical and legal issues relevant for group work is not intended to increase your anxiety level or make you so careful that you avoid taking any risks. Leading groups can be a risky as well as a professionally rewarding venture. You will make some mistakes, so be willing to acknowledge and learn from them. By making full use of supervision, you not only learn from what may seem like mistakes but you also minimize the chances of harming clients. Being frozen with anxiety over needing to know everything or being afraid to intervene for fear of becoming embroiled in a lawsuit only creates a bigger problem. It is a disservice to treat group members as though they were fragile and, thus, never challenge them. Perhaps the best way to prevent a malpractice action is by having a sincere interest in doing what is going to benefit your client. Be willing to ask yourself these questions throughout your professional career: *What* am I doing, and *why* am I doing it? And *how* would it be if my colleagues observed my professional behavior? For a more detailed discussion of ethical and legal issues, see Corey, Corey, Corey, and Callanan (2015).

Several useful resources for risk management practices that can be applied to group work are Kennedy, Vandehey, Norman, and Diekhoff (2003), Bennett, Bricklin, Harris, Knapp, VandeCreek, and Younggren (2006), and Wheeler and Bertram (2015).

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Points to Remember

Ethical and Legal Issues in Group Counseling

You are challenged to take a position on basic professional issues pertaining to your role as a group practitioner. The guidelines presented here provide a quick reference as you read the remainder of this book. Our aim in presenting these guidelines is to stimulate you to think about a framework that will guide you in making sound decisions as a leader.

- Take time to reflect on your personal identity. Think about your needs and behavior styles and about the impact of these factors on group participants. It is essential for you to have a clear idea of what your roles and functions are in the group so you can communicate them to members.
- Codes of ethics have been established by various professional organizations, and those who belong to such organizations are bound by them. Familiarize yourself with these established codes of ethics and with the laws that may affect group practice.
- Have a clear idea of the type of group you are designing and why it is the treatment of choice. Be able to express the purpose of the group and the characteristics of the clients who will be admitted.
- Be aware of the implications of cultural diversity in designing groups and in orienting members to the group process.
- Tell prospective group members what is expected of them, and encourage them to develop a contract that will provide them with the impetus to obtain their personal goals.
- Make prospective participants aware of the techniques that will be employed and of the exercises that they may be asked to participate in. Give them the ground rules that will govern group activities.
- Promote an atmosphere of respect for diversity within the group context.
- Make clear from the outset of a group what the focus will be.
- Avoid undertaking a project that is beyond the scope of your training and experience. Make a written statement of your qualifications available to the participants.
- Point out the risks involved in group participation both before members join and also when it is appropriate throughout the life of the group. It is your responsibility to help members identify and explore their readiness to deal with these potential risks. It is also your job to minimize the risks.
- Protect members' rights to decide what to share with the group and what activities to participate in. Be sensitive to any form of group pressure that violates the self-determination of an individual and to any activity that undermines a person's sense of self, such as scapegoating or stereotyping.
- Develop a rationale for using group exercises and be able to verbalize it. Use only techniques you are competent to employ, preferably those you have experienced as a group member.
- Relate practice to theory and remain open to integrating multiple approaches in your practice. Keep informed about research findings on group process, and use this information to increase the effectiveness of your practice.
- Begin and end group sessions on time. Facilitate group sessions in a safe, private location free from distractions or interruptions.
- Be aware of the power you possess by virtue of your role as a leader, and take steps to share this power to empower group members.
- Emphasize the importance of confidentiality to members before they enter a group, during the group sessions when relevant, and before the group terminates.
- Explain to members that legal privilege (confidentiality) does not apply to group counseling (unless provided by state statute).
- Avoid imposing your values on members. Recognize the role culture and socialization play in the formulation of members' values. Respect your clients'

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capacity to think for themselves, and be sure that members give one another the same respect.
- Be alert for symptoms of psychological debilitation in group members, which might indicate that participation in the group should be discontinued. Make referral resources available to people who need or desire further psychological assistance.
- Encourage participants to discuss their experience in the group and help them evaluate the degree to which they are meeting their personal goals. Devote some time at the end of each session for members to express their thoughts and feelings about that session.
- Do not expect the transfer of learning from the group to daily life to occur automatically. Assist members in applying what they are learning. Prepare them for setbacks they are likely to encounter when they try to transfer their group learning to their daily lives.
- Develop some method of evaluation to determine the effectiveness of the procedures you use. Even informal research efforts can help you make informed judgments about how well your leadership style is working.

Exercises

In-Class Activities

1. **Confronting gossiping.** It comes to your attention that certain members have been gossiping about matters that came up in a high school group you are leading. Do you deal with the offenders privately or in the group? What do you say?
2. **Limits of confidentiality.** You are about to begin leading a high school counseling group, and the policy of the school is that any teacher or counselor who becomes aware that a student is using drugs is expected to report the student to the principal. How do you cope with this situation?
3. **Dealing with parents.** You are conducting a self-exploration group with children in a family clinic. The father of one of the children in your group meets with you to find out how his child is doing. What do you tell him? What do you not tell him? Would you be inclined to meet with the father and his child? How might you handle this same situation with a request made by a noncustodial parent where the parents are divorced?
4. **Forming a group.** You are a private practitioner who wants to colead a weekend assertiveness training workshop. How would you announce your workshop? How would you screen potential members? Whom might you exclude from your workshop, and why?
5. **Coping with reluctant group members.** You are employed as a counselor in the adolescent ward of a county mental hospital. As one of your duties you lead a group for the young people, who are required to attend the sessions. You sense an unwillingness on the part of the members to come to group. What are the ethical problems involved? How do you deal with this situation?
6. **Leading an involuntary group.** You are asked to lead a group composed of involuntary clients. Because their participation is mandatory, you want to take steps to clearly and fully inform them of procedures to be used, their rights and responsibilities as members, your expectations of them, and matters such as confidentiality. If you were to write an informed consent document, what would you most want to put in this brief letter?
7. **Confronting an unhappy group member.** A member in a group you are leading comes to you after one of the sessions, saying, "I don't want to come back next week.

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It doesn't seem as if we're getting anywhere, because all that ever goes on is people putting each other down. I don't trust anyone in here!" She has not said any of this in the sessions, and the group has been meeting for 5 weeks. What might you say or do? Would you work with her? Why or why not?

8. **Leader's values.** Consider some of the following areas in which your values and those of group members might clash. How would you respond in each of these situations that could arise in your group?
   - **a.** A member discloses how excited she is over a current affair and wonders if she should continue staying with her partner.
   - **b.** A woman whose cultural background is different from yours and that of the other members in the group says she is having difficulty expressing what she wants and in behaving assertively (both in the group and at home). She says she has been taught to think of the interests of others and not to be concerned about what she wants.
   - **c.** An adolescent relates that his life feels bland without drugs.
   - **d.** A pregnant 16-year-old is struggling to decide whether to have an abortion or give up her baby to an adoption agency.
   - **e.** A chronically depressed man says that at times he thinks about suicide as his way out of a hopeless situation.
   - **f.** A man says he is very unhappy in his marriage but is unwilling to get a divorce because he is afraid of being alone.
   - **g.** A member who is from a different culture than the other members says he is having difficulty in the group because he is not used to speaking so freely or openly about family problems.
9. **Diversity and social justice guidelines.** You are on a committee to formulate guidelines to help counseling students learn how to deal effectively with diversity and social justice concerns in their groups. What issues most need to be addressed? What guidelines might you suggest to address these issues? What experiences would help students examine their attitudes and beliefs about diversity? What kind of information do you think students most need, and how might they best acquire this knowledge? What are your recommendations for developing skill in leading culturally diverse groups?
10. **Informed consent.** Create your own informed consent form for a group. What aspects would you want to make sure to include? How would you ascertain whether a member understood the various elements contained in your form?
11. **Experiential work.** In small groups, discuss what you think a university program should inform students about regarding experiential work. Come up with a brief statement about what students can expect regarding experiential aspects of the program. What are your ideas about making sure students have this information prior to enrolling in the program?
12. **Contacting the Association for Specialists in Group Work (ASGW).** Information about the Association for Specialists in Group Work (ASGW) is available from the main website (www.asgw.org).The following standards and guidelines can be downloaded from the website:

    - ASGW (2000) "Professional Standards for the Training of Group Workers"
    - ASGW (2008) "Best Practice Guidelines"
    - ASGW (2012) "Multicultural and Social Justice Competence Principles for Group Workers"

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This material can be discussed in class for both Chapter 2 and Chapter 3.

13. **Contacting the Association for Multicultural Counseling and Development (AMCD).** Information about the Association for Multicultural Counseling and Development is available from the main website (www.multiculturalcounseling.org). Endorsed by both the AMCD and the American Counseling Association in 2015, "Multicultural and Social Justice Counseling Competencies" (available online as a pdf) highlights taking action to promote social justice and emphasizes teaching clients how to advocate for themselves.

Questions for Discussion

1. What key points would you stress in educating members of your groups about confidentiality? If members express concerns about honoring confidentiality and wonder if they can trust what they say in a group, how would you respond?
2. What measures would you take to ensure confidentiality in your group? How would you deal with a member who broke confidentiality?
3. Under what circumstances would you feel compelled to breach confidentiality of a member in a counseling group? How would you handle this situation?
4. What are your thoughts about how you can best obtain the informed consent of members of your groups?
5. What special ethical issues may arise when working with a group composed of involuntary members?
6. What psychological risks are associated with group membership? How can these risks be minimized?
7. How are multicultural and social justice issues related to ethical group practice?
8. What guidelines might you use to determine the ethical use of techniques in group work?
9. In what ways might your personal values influence your work with group members? In what ways might you be concerned about your ability to bracket your personal values as you work with group members?
10. If a value conflict emerged between you and a group member, what specific steps would you take in managing this conflict?
11. Do you think students should or should not be required to participate in an experiential group as a part of their training in becoming group workers?
12. What kind of experiences have you had as a student in a group counseling course? What did you learn from these experiences?
13. What benefits and potential disadvantages can you envision in an experiential group as a part of the group course?
14. Which risk management procedures listed in this chapter do you consider to be especially important as legal safeguards for group counselors?
15. What legal liability and malpractice issues most concern you as a group worker?

MindTap for Counseling

Additional resources can be found on CengageBrain.com and by logging into the MindTap course created by your professor. There you will find a variety of study tools and useful resources that include quizzes, videos, interactive exercises, and more.

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